

WRITTEN APPLICATION UNDER NRS 179A.160 - COPY FOR THE CENTRAL REPOSITORY

To: The Central Repository for Nevada Records of Criminal History
Nevada State Police, Records, Communications and Compliance Division
333 West Nye Lane, Suite 100, Carson City, Nevada 89706

From: Maria-Alejandra O'Shaughnessy-Whitfield

Date of birth: 1968-12-31

Mailing address: 11884 East Painted Rock Crossing Boulevard, Apartment 14B, Reno, Nevada
89506-2214

Telephone: (775) 555-0199 ext. 4417

Email: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Other names I have used, including any former legal names (the repository indexes by identity, and an application under one name may not reach a record filed under another; write NONE if none):

.....

RE: WRITTEN APPLICATION UNDER NRS 179A.160 FOR REMOVAL OF A RECORD OF
CRIMINAL HISTORY

SEND THIS APPLICATION ONLY IF every answer on the exclusion-screen page of this packet is NO. If any of the five NRS 179A.160(2) conditions applies to you, the Central Repository and the agency are not permitted to remove the record, and sending this application cannot help.

1. I am the subject of a record of criminal history relating to an arrest, citation or warrant, and I apply in writing under NRS 179A.160(1) to have that record removed from the files which are available and generally searched for the purpose of responding to inquiries concerning the criminal history of a person.

2. The record I ask to have removed is identified as follows, from my own criminal history record and court paperwork:

Agency that arrested me, cited me, or sought the warrant:

.....

Date of the arrest, citation or warrant:

.....

Case or event number the record carries, as my criminal history record or court paperwork states it:

.....

3. The charge was dismissed, an acquittal was entered, or the disposition of the charge was otherwise favourable to me, and that disposition is final. The disposition, and the date it became final, exactly as the court record states them:

.....

.....

4. NRS 179A.160(2) requires the Central Repository and the agency to remove the record unless one of five stated conditions applies. By signing below I state that, to the best of my knowledge, none of them does: I am not a fugitive; the case is not under active prosecution; the disposition was not a deferred prosecution, plea bargain or other similar disposition; I have no prior conviction for a felony or gross misdemeanor in any jurisdiction in the United States; and I have not been arrested for or charged with another crime, other than a minor traffic violation, since the arrest, citation or warrant identified above. The exclusion-screen page of this packet is where I checked each of these before signing.

5. I therefore ask that the record be removed from the files which are available and generally searched for the purpose of responding to criminal history inquiries, as NRS 179A.160(2) requires when none of its conditions applies.

DATE SIGNATURE OF APPLICANT

(You sign and date this application personally. Nothing on this page is signed or dated for you. NRS 179A.160 requires no notarization.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

Route: obligation:track-only:NV:nv_repository_removal

WRITTEN APPLICATION UNDER NRS 179A.160 - COPY FOR THE AGENCY WHICH
MAINTAINS THE RECORD

To: the agency which maintains the record (ordinarily the agency that arrested you, cited you or sought the warrant)

Name and mailing address of the agency (you write it here; the agency's own website or the court that handled the case can confirm the address):

.....
.....

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WHAT THIS REMEDY IS, AND WHAT IT IS NOT

For: Maria-Alejandra O'Shaughnessy-Whitfield

NRS 179A.160 is a REPOSITORY remedy, not a court sealing order. It addresses the state's own criminal history record and the record-holding agency's - not the court's - and it removes the record from the files that are available and generally searched for the purpose of responding to criminal history inquiries, rather than destroying it. Nevada calls its remedies record sealing and never expungement: the state agency states directly that sealing is not expungement because it does not authorise destruction of the records.

The application goes to TWO recipients, and this packet carries a copy for each: the Central Repository for Nevada Records of Criminal History, and the agency which maintains the record. Subsection 2 puts the removal duty on both. A single copy sent to the Repository alone leaves the arresting agency's own record untouched - which is exactly the failure this packet exists to prevent.

There is no waiting period: the application may be made at any time after the charge is dismissed, acquittal is entered, or the disposition of the charge in your favour is final. Finality, not time, is the condition.

NRS 179A.160(3) preserves a court's separate authority to order deletion or modification of a record, so this remedy and the court's coexist - which is why the next page matters.

A Nevada removal does not bind out-of-state or federal agencies and does not reach records they hold. It does not restore firearm rights; only a pardon that does not restrict the right to bear arms does. It must not be described as having any immigration effect.

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THE COURT RECORD IS SEPARATE: THE PARALLEL SEALING PETITION

For: Maria-Alejandra O'Shaughnessy-Whitfield

Repository removal alone LEAVES THE COURT RECORD. The court's own record of the case is reached by a separate court sealing petition on the non-conviction sealing track, which is a different filing in a different place, and nothing in this packet files it for you.

The two remedies also move at different speeds in the other direction: a court sealing order does not reach the repository at once. The Records, Communications and Compliance Division's own General Information document, rev. 8/2025, records that the sealing process can take up to 6 months to complete once the final seal order is received - so a participant who obtains a court order should not expect the repository to reflect it immediately.

If you want both the court record sealed and the repository record removed, both remedies are needed: this packet's application for the repository and the agency, and the separate court petition for the court's record. If you are unsure whether the court sealing petition fits your case, the clerk of the court that handled the case can tell you what the court's record shows, and Nevada Legal Services is where to take the question.

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THE FIVE CONDITIONS THAT DEFEAT THIS APPLICATION

For: Maria-Alejandra O'Shaughnessy-Whitfield

NRS 179A.160(2) requires the Central Repository and the agency to remove the record UNLESS one of five conditions applies. Check every one before signing the application. If ANY answer is yes, do not send it - removal is not permitted, and the referral page says where to take it.

ONE. Are you a fugitive? (NRS 179A.160(2)(a))

TWO. Is the case under active prosecution, according to a current certificate of a prosecuting attorney? (NRS 179A.160(2)(b))

THREE. Was the disposition of the case a DEFERRED PROSECUTION, a PLEA BARGAIN, or any other similar disposition? (NRS 179A.160(2)(c)) This is the condition that most often defeats the route in practice, even though you may rightly describe the outcome as favourable. If your case was resolved by a deferral of judgment, this route is not yours - the deferred-judgment track under NRS 176.211 is where that belongs.

FOUR. Have you EVER been convicted of a felony or a gross misdemeanour ANYWHERE in the United States - not merely in Nevada? (NRS 179A.160(2)(d))

FIVE. Since the arrest, citation or warrant you want removed, have you been arrested for or charged with any other crime, apart from a minor traffic violation? (NRS 179A.160(2)(e))

Two of these are easy to get wrong from memory: the deferred-prosecution and plea-bargain condition, and the prior-conviction condition that reaches the whole United States. Check your answers against your own criminal history record and the court paperwork, not against recollection.

One more threshold the section does not define: whether your disposition is "favorable to the person" at all. Dismissal and acquittal are the section's own examples. If your outcome is anything less clear-cut, whether it qualifies is a legal characterisation - stop and take it to a lawyer or Nevada Legal Services rather than deciding it yourself.

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HOW TO APPROACH THE DIVISION AND THE AGENCY, AND WHERE TO GET HELP

For: Maria-Alejandra O'Shaughnessy-Whitfield

GETTING YOUR OWN RECORD FIRST. The application identifies the record by agency, date and case or event number, and asks you to check the disposition against your own criminal history record. The Records, Communications and Compliance Division charges a fee for providing a copy of a criminal history record - that is a fee for the copy, a different service, and not a fee for this application, which NRS 179A.160 makes free.

SENDING THE APPLICATION. The section prescribes no delivery method. A method that produces proof of delivery is a filing instruction rather than a legal requirement - it is how you will later show that both recipients had the application. Whether the Central Repository wants a criminal history record to accompany the application is likewise not prescribed; the Division can tell you its own practice when you ask.

PROOF OF THE DISPOSITION. NRS 179A.160 requires no attachment. But the Repository and the agency have to satisfy themselves that the disposition is favourable and final, and an application that carries the proof is the one that can be acted on. A certified copy of the dismissal, acquittal or other favourable disposition comes from the court that handled the case.

BOTH RECIPIENTS, ALWAYS. Send one signed copy to the Central Repository at the address printed on it, and one signed copy to the agency which maintains the record at the address you wrote on it. The removal duty sits on both, and a copy sent to one alone leaves the other's record standing.

IF THE ANSWER IS NO, OR NOTHING HAPPENS. The section provides no appeal from a refusal, and a refusal is not something to litigate alone. Take the refusal, or the silence, to a lawyer or to Nevada Legal Services.

WHEN TO STOP AND GET HELP INSTEAD OF SENDING

- any of the five exclusion-screen answers is yes, or you are not sure;
- whether your disposition is favourable is arguable on the record;
- you also need the court record sealed - a separate petition this packet does not file;
- records sit with more than one agency, where a single application will not reach every custodian;
- federal, tribal, military or out-of-state records are involved - a Nevada remedy does not reach them;
- your goal is firearm rights, which removal does not restore;
- any immigration question.

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